

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-

KENNETH W. KUTSCHKAU and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), KENNETH W. KUTSCHKAU and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #86, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendant, KENNETH W. KUTSCHKAU, and the Plaintiff, are annual.
5. Defendant, KENNETH W. KUTSCHKAU, a natural person, agreed to reside at 900 9th Ave East, Lot #86, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Defendant's acknowledgment of receipt of the Rules and Regulations is attached to this Complaint as Plaintiff's

“Exhibit A”.

6. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #86, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

7. Defendant, KENNETH W. KUTSCHKAU, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #86, Palmetto, Florida, 34221.

8. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

9. The residents of the community, including Defendants, own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723.

10. Plaintiff, as landlord, leased to Defendant, KENNETH W. KUTSCHKAU, LOT #86, of the above stated mobile home park at a monthly rental fee.

11. For the year 2025, the monthly rent is the sum of \$821.00. The monthly rent for 2026 is \$875.00.

12. Defendant, KENNETH W. KUTSCHKAU, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$4,350.00 which represents the months of July 2025 through November 2025 including late fees, which, according to the Rules and Regulations of Colonial Manor are additional rent.

13. On November 10, 2025, Plaintiff served on Defendants, KENNETH W. KUTSCHKAU and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #86, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's **Exhibit "B"**.

14. On November 10, 2025, Plaintiff also served on Defendants, KENNETH W. KUTSCHKAU and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice and certified proof of mailing is attached and marked Plaintiff's **Exhibit "C"**.

15. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.

16. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #86 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

17. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

18. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

19. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

20. The total lot rental amounts due as of November 10, 2025, which must be paid into the registry of the Court, is \$4,350.00 plus \$821.00 for the month of December, 2025 and \$875.00 for 2026, due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, KENNETH W. KUTSCHKAU and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II

ACTION FOR DAMAGES (RENTAL)

21. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney

fees.

22. Plaintiff re-alleges the facts contained within paragraphs 1 through 20 as though fully set forth herein.

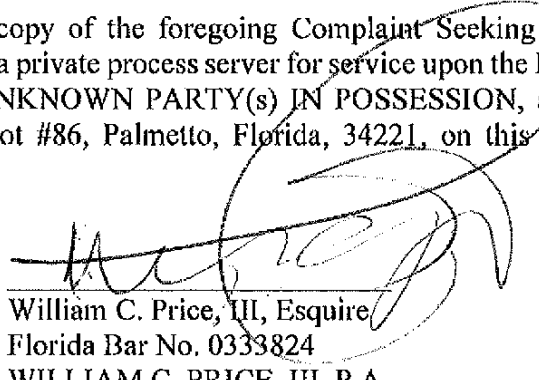
23. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

24. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, KENNETH W. KUTSCHKAU, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, KENNETH W. KUTSCHKAU and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #86, Palmetto, Florida, 34221, on this 19th day of December, 2025.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@weprielaw.com
Attorney for Plaintiff

COLONIAL MOBILE MANOR 55+ COMMUNITY

900 9TH AVE E
PALMETTO, FLORIDA 34221
PHONE: (941) 722-3191

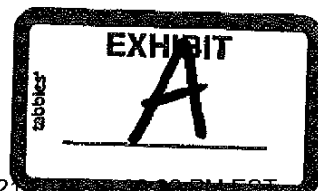
LOT # 86

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND REGULATIONS OF
COLONIAL MOBILE MANOR 55+ COMMUNITY, WHICH I (WE) AGREE TO ABIDE
BY.

DATE: 2-23-2021

SIGNATURE: Ben Zutscher

SIGNATURE: _____



COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: November 10, 2025

TO: Kenneth W. Kutschkau, Tenant
And Any Unknown Party(s) in Possession
900 9TH Avenue E Lot #86
Palmetto, FL 34221
CMRR # 9589 0710 5270 0091 7222

FROM: Colonial Manor MHC Holdings,
900 9TH Avenue East
Palmetto, FL 34221
Telephone: (941)-722-3191
Cheryl Peake, Manager

**VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL- RETURN RECEIPT
REQUESTED**

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$821.00 per month.

You have failed to pay the past due lot rental amounts for the months of July, 2025 through November, 2025, in the amount of \$4,350.00, consisting of the items shown below. The total lot rental amount due as of the date of this demand is \$4,350.00, payable to the address above.

- Rent for the billing period of November 2025 in the amount of \$821.00
- Late fee for the billing period of November 2025 in the amount of \$45.00

October 2025- \$866

Rent of October 1, 2025 to October 31, 2025 in the amount of \$821.00

Late Fee on October 1, 2025 to October 31, 2025 in the amount of \$45.00

September 2025- \$866

Rent of September 1, 2025 to September 30, 2025 in the amount of \$821.00

Late Fee on September 1, 2025 to September 30, 2025 in the amount of \$45.00

August 2025- \$866

Rent of August 1, 2025 to August 31, 2025 in the amount of \$821.00

Late Fee on August 1, 2025 to August 31, 2025 in the amount of \$45.00

July 2025- \$866

Rent of July 1, 2025 to July 31, 2025 in the amount of \$821.00

NSF on July 1, 2025 to July 31, 2025 in the amount of \$20.00

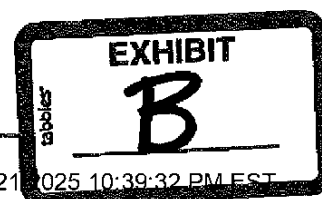
Late Fee on July 1, 2025 to July 31, 2025 in the amount of \$45.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays). If the total lot rental amount now due is not paid on or before November 18, 2025, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY

Page 1 of 2



MAILED CERTIFIED RETURN RECEIPT ON: Nov 10 2025

BY: C. P. Panko
Employee Signature

COPY POSTED ON PREMISES (900 9th Ave E, Lot #86)

POSTED ON: Nov 10 2025 E 4:45pm
(date/time)

POSTED BY: C. P. Panko
(Employee Signature)

Colonial Manor MHC Holdings, LLC

Vs.

Kenneth W. Kutschkau

COLONIAL MANOR MHC HOLDINGS, LLC

d/b/a COLONIAL MANOR

900 9TH Avenue East

Palmetto, FL 34221

941-722-3191

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: November 10, 2025

**TO: Kenneth W. Kutschkau, Tenant
And Any Unknown Party(s) in Possession
900 9th Avenue E Lot #86
Palmetto, FL 34221**

**FROM: Colonial Manor MHC Holdings,
900 9th Avenue East
Palmetto, FL 34221
Telephone: (941)-722-3191**

CMRR # 9589 0710 5270 2091 7422 22 Cheryl Peake, Manager

**VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL- RETURN RECEIPT
REQUESTED**

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$821.00 per month.

You have failed to pay the past due lot rental amounts for the months of July, 2025 through November, 2025, in the amount of \$4,350.00, consisting of the items shown below. The total lot rental amount due as of the date of this demand is \$4,350.00, payable to the address above.

- Rent for the billing period of November 2025 in the amount of \$821.00
- Late fee for the billing period of November 2025 in the amount of \$45.00

October 2025- \$866

Rent of October 1, 2025 to October 31, 2025 in the amount of \$821.00

Late Fee on October 1, 2025 to October 31, 2025 in the amount of \$45.00

September 2025- \$866

Rent of September 1, 2025 to September 30, 2025 in the amount of \$821.00

Late Fee on September 1, 2025 to September 30, 2025 in the amount of \$45.00

August 2025- \$866

Rent of August 1, 2025 to August 31, 2025 in the amount of \$821.00

Late Fee on August 1, 2025 to August 31, 2025 in the amount of \$45.00

July 2025- \$866

Rent of July 1, 2025 to July 31, 2025 in the amount of \$821.00

NSF on July 1, 2025 to July 31, 2025 in the amount of \$20.00

Late Fee on July 1, 2025 to July 31, 2025 in the amount of \$45.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays). If the total lot rental amount now due is not paid on or before November 18, 2025, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY

Page 1 of 2

EXHIBIT

C

MAILED CERTIFIED RETURN RECEIPT ON: Nov 10 2025

BY: C. E. Peak
Employee Signature

COPY POSTED ON PREMISES (900 9th Ave E, Lot #86)

POSTED ON: Nov 10 2025 e 4:45pm
(date/time)

POSTED BY: C. E. Peak
(Employee Signature)

Colonial Manor MHC Holdings, LLC

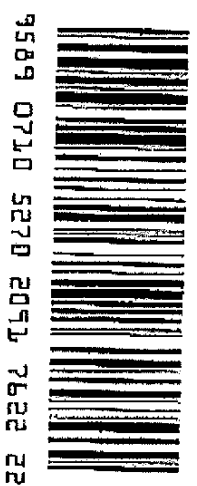
Vs.

Kenneth W. Kutschkan

Estimated Delivery Date
 FRI 11/14/2025
 Certified Mail®
 Tracking # 9589 0710 5270 2091 7610 22
 Return Receipt
 Tracking # 9580 3402 9334 4122 8120 53
 Total \$10.48
 First-Class Mail® 1 \$0.78
 Letter
 Palmetto, FL 34221
 Weight: 0.15 0.60 oz
 Estimated Delivery Date
 FRI 11/14/2025
 Certified Mail®
 Tracking # 9589 0710 5270 2091 7622 22
 Return Receipt
 Tracking # 9580 3402 9334 4122 8120 53
 Total \$10.48
 Grand Total: \$10.48

U.S. Postal Service
CERTIFIED MAIL RECEIPT
 Palmetto, FL 34221
 Certified Mail®
 Tracking # 9589 0710 5270 2091 7622 22
 Return Receipt
 Tracking # 9580 3402 9334 4122 8120 53
 Total \$10.48
 First-Class Mail®
 Letter
 Palmetto, FL 34221
 Weight: 0.15 0.60 oz
 Estimated Delivery Date
 FRI 11/14/2025
 Certified Mail®
 Tracking # 9589 0710 5270 2091 7622 22
 Return Receipt
 Tracking # 9580 3402 9334 4122 8120 53
 Total \$10.48
 Grand Total: \$10.48

Colonial Manor MHP
 900 9th Ave East
 Palmetto, FL 34221



CERTIFIED MAIL

11/13/25

Ken Kutschkan
 900 9th Ave E
 Palmetto FL 34221

UNC
 34221-5322

U.S. POSTAGE PAID
 FCM LETTER
 PALMETTO, FL 34221
 NOV 12, 2025
 \$10.48
 52321M504116-45



RDC 99
 Retail
 34221